

Benoit Blanc, the world’s greatest private investigator, has made a terrible mistake. He has entered the market for consumer goods.

The Players:

- **Benoit Blanc:** Our protagonist and gentleman detective, domiciled in Louisiana, where he practices the investigative arts out of his home in Baton Rouge.
- **Alpha Devices, Inc.:** A consumer robotics company incorporated in Delaware, with its headquarters and principal place of business in Porto, Portugal.
- **Duke Cody:** A rival private investigator, domiciled in Texas, who sells a competing— inferior—home-deduction device.
- **Ada and Marcus Whitlock:** A married couple in Omaha, Nebraska.

The Scene:

In 2024, **Blanc** licensed his name, likeness, signature drawl, and “deductive methodology” to **Alpha** for a consumer product: THE DEDUCTION ENGINE, a smart-home device that listens continuously to a household and announces its deductions aloud in Blanc’s voice and mannerisms.¹ **Alpha** assembles the Engine in Portugal.

Alpha sells the Engine exclusively through its own website. The site quotes prices in dollars, ships to all fifty states, calculates and remits sales tax in each of them, and buys advertising targeted by ZIP code. **Alpha** sells about 350 Engines per year in Nebraska. It owns no property in the state and employs no one there.

Blanc’s role is limited but lucrative. He recorded the promotional videos, he receives a four percent royalty on every unit sold anywhere, and under Section 9 of the license agreement between **Blanc** and **Alpha**, he holds the contractual right to approve all advertising copy before it runs. **Blanc** has never exercised this right. Section 14 of the same agreement provides that “any dispute arising out of the Product shall be litigated in the courts of Louisiana.”

Blanc also promotes the Engine himself. In February 2026 he appeared — from his claw-footed bathtub in Baton Rouge — on *The Sleuthing Hour*, a podcast recorded in Chicago and available everywhere. Asked about the competition, **Blanc** said: “There is a man in Texas who sells a rival device. He tampers with baby monitors. I shall not name him, but I think you know the one.” Of the podcast’s audience, roughly two percent, or about 4,000 listeners, are in Texas. **Duke Cody**’s business experienced a significant downturn subsequent to the podcast episode.

The **Whitlocks** bought their Engine from **Alpha** in 2024, while living in Denver, Colorado. They brought it with them when they moved to Omaha, Nebraska in 2025. And in March 2026, the **Whitlocks**’ Deduction Engine, rather than announcing a deduction, instead transmitted a

¹ An example deduction, transcribed from the logs of the Whitlocks’ unit: “ONE SOCK. NOT A PAIR—ONE. A PAIR THAT LOSES A SOCK IS A TRAGEDY. BUT A SOCK THAT LOSES A PAIR IS A WITNESS. IT ENTERED THAT DRYING MACHINE WITH A COMPANION; IT NOW STANDS ALONE. AND IN ALL MY YEARS I HAVE NEVER KNOWN A DRYER TO DEVELOP AN APPETITE. THE DOG, HOWEVER... ITS EYES HINT AT A STORY ITS STOMACH MAY WISH REMAINS UNTOLD.”

recording of a private and extremely unflattering argument between **Ada** and **Marcus** to every other Deduction Engine in Nebraska, where it was played aloud in each house.

Litigation, as it so often does, ensued.

The Lawsuits:

1. *Whitlock v. Alpha Devices, Inc.* and *Benoit Blanc* (United States District Court for the District of Nebraska). The Whitlocks bring a Nebraska state-law claim for negligence. Both defendants separately move to dismiss for lack of personal jurisdiction.

2. *Cody v. Blanc* (Texas state court). Duke Cody sues Blanc for defamation over the podcast remarks. Blanc has never traveled to Texas on business and has no clients there. He was, however, served in Texas after a cross-country flight he was on was forced to make an emergency landing in Houston. In the less than two hours Blanc was in the Houston airport before boarding a new flight, he bumped into Cody's service agent, who was at the airport to board a flight to Baton Rouge to serve Blanc at his home. Instead, the agent served Blanc at the airport. Blanc moves to dismiss for lack of personal jurisdiction.

The Statutes:

The **Nebraska** long-arm statute permits the exercise of jurisdiction "on any basis not inconsistent with the Constitution of this state or the Constitution of the United States."

The **Texas** long-arm statute provides that "a court of this State may exercise jurisdiction over a nonresident if that person: (1) transacts any business within the State; or (2) commits a tortious act within this State."

How should the courts rule on each of the three pending motions?

(instructions on next page)

Instructions:

1. Word Limit: 1000 words
 - a. At the bottom of your answer **please state “[number] words.”**
 - b. Use the default word count on your word processing software, highlighting just your substantive answer.
 - c. Identifying your word count does not count against your word limit.
 - d. This word limit is intentionally *tight* – you do not have the space to restate rules without connection to analysis.
2. You may work alone, with a partner, or in groups of up to five.
 - a. Do not discuss the assessment with anyone else—including Grace, other students, or classmates outside of your group. Part of the purpose is giving me a good cross-section to assess student learning; that doesn’t work if you all submit the same answer.
 - b. You **must list all group members** at the bottom of your answer (does not count against word limit)
 - c. Everyone in the group must **individually turn in an identical copy** via Blackboard
3. You may not use an AI/LLM to help generate your answer.
 - a. This does not include word processor spellcheck functions. In the event of ambiguity about whether something else counts as “using AI,” assume the answer is yes.
 - b. At the bottom of your answer you **must include the written statement:** “[I/we] did not use an AI/LLM to assist in the preparation of this answer” and **sign your name(s).**
 - c. Electronically typing your name will suffice as a signature.
 - d. This statement and signature does not count against your word limit.
4. This assessment is due **as a .pdf or .docx file submitted via Blackboard by 10:14 AM on Thursday, 9/3/26.**
 - a. This is a strict deadline. **No late assessments will be accepted.**
 - b. **It is intentionally BEFORE YOUR TORTS CLASS.**
 - c. No physical copies will be accepted. If for any reason Blackboard is not working, you may email the submission to me by the deadline.
5. Failure to follow these instructions will result in a deduction from your grade on the assessment, which will otherwise be +4 for good-faith effort and +1 for exceptional performance.

Example signature block:

937 words

Group Members: Luke Smith Morgan, Jesse Williams

We did not use an AI/LLM to assist in the preparation of this answer.

/s/ Luke Smith Morgan, Jesse Williams